

4. 9:00 AM CASE NUMBER: C24-01669
CASE NAME: DIEGO RIVEROS VS. CHRISTOPHER MARCONI
*HEARING ON MOTION IN RE: FOR RELIEF FROM DEFAULT FILED BY CHRISTOPHER MARCONI
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Christopher Marconi's Motion for Relief from Default.

Defendant's motion is **DENIED** for the reasons set forth below.

Background Procedure

Plaintiff Diego Riveros, acting in pro per at the time, filed the complaint in this matter on July 1, 2024. It alleges a single cause of action for breach of contract against Defendant Christopher Marconi. On August 28, 2024, Plaintiff filed a Proof of Service of Summons indicating Defendant Marconi was personally served with the Summons and Complaint on August 6, 2024, at 1:45 p.m. at 3341 Power Inn Road, Sacramento, California. The Proof of Service indicates service was effectuated by a California registered process server.

Over ten months later, on June 18, 2025, Plaintiff sought and was granted a default against Defendant Marconi. Defendant Marconi filed the instant motion for relief from default on July 11, 2025. The hearing was originally set for October 27, 2025. On that date, the Court continued the hearing until December 22, 2025. On December 5, 2025, the Court granted the parties' stipulation to continue the hearing to March 30, 2026 – a date following the hearing on Defendant's counsel's motion to be relieved as counsel. The Court notes the Defendant's counsel's motion to be relieved as counsel was granted on March 23, 2026.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). Code of Civil Procedure 473(b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) "In such situations, 'very slight evidence will be required to justify a court in setting aside the default.'" (*Ibid. quoting Bailey v. Taaffe* (1866) 29 Cal.423, 424.)

"Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235

[emphasis added].) “Moreover, because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Ibid.*)

Analysis

As noted above, Plaintiff filed a Proof of Service on August 28, 2024, signed by a registered California process server, indicating that Mr. Marconi was personally served on August 6, 2024. The “filing of a proof of service creates a rebuttable presumption that service was proper.” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1205 quoting *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) “The return of a registered process server ‘establishes a presumption, *affecting the burden of producing evidence*, of the facts stated in the return.” (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940 quoting Evid. Code § 647, italics in original.)

Along with his moving papers, Mr. Marconi provides a declaration wherein he indicates that he has been legally blind since approximately 2013. (Marconi Decl. ¶ 2.) He declares that while it is “entirely possible that on the subject date and time [he] was at the location noted in the proof of service, [he] absolutely and categorically den[ies] having ever been given, provided, or served with any papers or documents regarding this lawsuit.” (Marconi Decl. ¶ 3.) He affirms that if he had been served, he would have timely responded. (*Ibid.*)

Mr. Marconi instead insists that the first time he heard of this lawsuit was when he received the notice of default in the mail on June 19, 2025. At that time, he promptly retained counsel who filed the instant motion to set aside.

Plaintiff argues in opposition that “Defendant’s bare assertion that he was not served is insufficient to overcome this presumption.”

Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419 is instructive. There, a three-day notice to quit was served by a registered process server. In their verified answer, defendants denied that they had been served with the three-day notice.

The court found that under Evidence Code section 647, “the proof of service ‘establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.’” (*Id.* at 1428.) “As explained in Evidence Code section 604, ‘[t]he effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.’” (*Ibid.* quoting Cal. Evid. Code § 604.)

Based on the above, the *Palm Property* court found that the defendants “were required to come forth with evidence – beyond their answer – in order to overcome the presumption.” (*Ibid.*) Defendants “offered no evidence to show that they were not properly served and instead relied upon their answer....” (*Ibid.*)

Defendant Marconi’s declaration indicating that he was not served with the summons and complaint is similar to a verified answer indicating the same. It does not provide any *evidence* beyond the mere

assertion by the defendant to support his statement.

Defendant failed to proffer any further corroborating evidence to rebut the presumption of service and show that he was not properly served.

Conclusion

Defendant's Motion for Relief from Default is **DENIED**.

5. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: SEAL PORTIONS OF EXHIBITS IN SUPPORT OF DEFENDANTS'**
MOTION FOR SUMMARY JUDGMENT
FILED BY: SEENO, ALBERT D., JR.
TENTATIVE RULING:

Defendant Albert D. Seeno, Jr. and related entities ("Defendants") filed a Motion to Seal on November 17, 2025 (the "Motion to Seal"). The Motion to Seal was set for hearing on March 30, 2026. The motion is unopposed.

Background

This motion seeks to seal portions of the "Portions of Appendix of Exhibits in Support of Defendants' Motion for Summary Judgment (the "Portions to be Sealed"). The subject pleading was filed on November 17, 2025 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as past of that ruling. See Order entered February 5, 2026. See Minute Order dated February 19, 2026 (regarding February 9, 2026 hearing on Motion for Summary Judgment).

Analysis

Under the California Rules of Court, "[u]nless confidentiality is required by law, court records are presumed to be open." Rule 2.550(c) of the California Rules of Court ("CRC"). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is